

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER PR15869274		Page 1 of 53	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER 19LG7526Q0002	
6. SOLICITATION ISSUE DATE 03/20/2026		7. FOR SOLICITATION INFORMATION CALL 		a. NAME Christine Lyons		b. TELEPHONE NUMBER Riga-ProcurementSection@state.gov	
8. OFFER DUE DATE/LOCAL TIME 04/09/2026, 14:00		9. ISSUED BY AMERICAN EMBASSY RIGA SAMNERA VELSA STREET 1; ATTN: GSO/PROCUREMENT RIGA 1510 LATVIA		CODE LG750		10. THIS ACQUISITION IS x UNRESTRICTED _ SET ASIDE: % FOR _ SMALL BUSINESS _ HUBZONE SMALL BUSINESS SMALL BUSINESS _ 8(A) _ SERVICE-DISABLED VETERAN OWNED NAICS: SIZE STD:	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED x SEE SCHEDULE		12. DISCOUNT		13a. THIS CONTRACT IS A RATED ORDER 13b. RATING			
14. METHOD OF SOLICITATION x RFQ IFB RFP		15. DELIVER TO: Code AMERICAN EMBASSY RIGA SAMNERA VELSA STREET 1; ATTN: GSO/PROCUREMENT RIGA 1510 LATVIA					
16. Administered by:		AMERICAN EMBASSY RIGA SAMNERA VELSA IELA 1 RIGA, 1510 LATVIA, RIGA.BILLING.OFFICE@STATE.GOV					
17a. CONTRACTOR/OFFEROR OVENDOR		CODE 0		FACILITY CODE		18a. PAYMENT WILL BE MADE BY AMERICAN EMBASSY RIGA SAMNERA VELSA STREET 1, ATTN: B&F RIGA 1510 LATVIA	
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED _ SEE ADDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
1.	Mobile telephone services to the Embassy of the United States of America in Riga, Latvia. (Use Reverse and/or Attach Additional Sheets as Necessary)			1	SET		
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
X 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. ARE ATTACHED. ADDENDA _ ARE x_ ARE NOT ATTACHED.							
_ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA _ ARE _ ARE NOT ATTACHED.							
X 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.				_ 29. AWARD OF CONTRACT: REF. OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or Print)		31c. DATE SIGNED	

11. SCHEDULE (Include applicable Federal, State and local taxes)					
ITEM NO. (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
1	Mobile telephone services to the Embassy of the United States of America in Riga, Latvia.	1.00	SET		

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SECTION 1 - THE SCHEDULE

**CONTINUATION TO SF-1449
RFQ NUMBER 19LG7526Q0002
PRICES, BLOCK 23**

I. SCOPE OF CONTRACT

The Contractor shall provide mobile telephone and data services to Embassy of the United States of America in Riga, Latvia. The prices listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit. The Government will pay the Contractor on a monthly basis for Standard Services that have been satisfactorily performed.

II. PERIOD OF PERFORMANCE

The contract will be for a one-year period from the date of the contract award, with four (4) option years to renew.

III. PRICING**A. Base Year of Service**

Description	Estimated Monthly Qty	Estimated Yearly Qty	Unit of Measure	Unit Price	Total Price per Year
Regular Service Fees					
1. Activation Fee (per line)	n/a	150	line	€	€
2. All other Administrative Fees (per line/month)	150	1,800	line/month	€	€
3. Unlimited Calls from Latvia to any EEA country (per line/month)	150	1,800	line/month	€	€
4. Unlimited Text messages from Latvia to any EEA country (per line/month)	150	1,800	line/month	€	€
5. Unlimited Calls from any EEA country to other EEA countries (roaming, per line/month)	150	1,800	line/month	€	€
6. Unlimited Text messages from any EEA country to other EEA countries (roaming, per line/month)	150	1,800	line/month	€	€
7. Unlimited data plan for data usage in Latvia. Data plan 10GB in EEA (per line /month, EU fair use policy).	150	1,800	line/month	€	€
Uncommon Fees					
8. Data usage in the USA (roaming per GB)	10	120	GB/month	€	€
9. Data usage in the EEA (roaming per GB, above fair use)	5	60	GB/month	€	€
10. Data Usage in Other Countries (roaming per GB)	5	60	GB/month	€	€

11. Calls to Satellite and Global/International Networks (per minute)	1	12	minute/month	€	€
12. Calls to the United States (per minute)	120	1440	minute/month	€	€
13. Calls to Other Countries (per minute)	120	1440	minute/month	€	€
14. Text Messages to the United States (per message)	100	1200	minute/month	€	€
15. Text Messages to Other Countries (per message)	100	1200	minute/month	€	€
16. Dedicated mobile Internet service	2	24	line/month	€	€
17. Static IP for dedicated mobile Internet service	2	24	line/month	€	€
Base Year Summary Month/Year					
18. Base Year of Service Total for services per month (CLIN 2-CLIN 17)			€		
Base Year Total for Services Per Year					
19. Base Year of Service Total for services per year (CLIN 18 x 12 months+ CLIN 1)			€		

If the price cannot be provided in accordance with our requirements for Uncommon Fees (CLIN 8 – CLIN 17), please submit your own price list for all required countries as an attachment to your offer.

During this contract period, the Government shall place orders totaling a minimum of Euro 2,000.00. This reflects the contract minimum for this period of performance. The total amount of all orders shall not exceed EUR 50,000.00. This reflects the contract maximum for this period of performance.

B. First Option Year of Service

Description	Estimated Monthly Qty	Estimated Yearly Qty	Unit of Measure	Unit Price	Total Price per Year
Regular Service Fees					
1a. Activation Fee (per line)	n/a	15	line	€	€
2a. All other Administrative Fees (per line/month)	165	1,980	line/month	€	€
3a. Unlimited Calls from Latvia to any EEA country (per line/month)	165	1,980	line/month	€	€
4a. Unlimited Text messages from Latvia to any EEA country (per line/month)	165	1,980	line/month	€	€
5a. Unlimited Calls from any EEA country to other EEA countries (roaming, per line/month)	165	1,980	line/month	€	€
6a. Unlimited Text messages from any EEA country to other EEA countries (roaming, per line/month)	165	1,980	line/month	€	€

7a. Unlimited data plan for data usage in Latvia. Data plan 10GB in EEA (per line /month, EU fair use policy).	165	1,980	line/month	€	€
Uncommon Fees					
8a. Data usage in the USA (roaming per GB)	10	120	GB/month	€	€
9a. Data usage in the EEA (roaming per GB, above fair use)	5	60	GB/month	€	€
10a. Data Usage in Other Countries (roaming per GB)	5	60	GB/month	€	€
11a. Calls to Satellite and Global/International Networks (per minute)	1	12	minute/month	€	€
12a. Calls to the United States (per minute)	120	1440	minute/month	€	€
13a. Calls to Other Countries (per minute)	120	1440	minute/month	€	€
14a. Text Messages to the United States (per message)	100	1200	minute/month	€	€
15a. Text Messages to Other Countries (per message)	100	1200	minute/month	€	€
16a. Dedicated mobile Internet service	2	24	line/month	€	€
17a. Static IP for dedicated mobile Internet service	2	24	line/month	€	€
Base Year Summary Month/Year					
18a. Base Year of Service Total for services per month (CLIN 2a-CLIN 17a)			€		
Base Year Total for Services Per Year					
19a. Base Year of Service Total for services per year (CLIN 18a x 12 months+ CLIN 1a)			€		

If the price cannot be provided in accordance with our requirements for Uncommon Fees (CLIN 8a – CLIN 17a), please submit your own price list for all required countries as an attachment to your offer.

During this contract period, the Government shall place orders totaling a minimum of Euro 2,000.00. This reflects the contract minimum for this period of performance. The total amount of all orders shall not exceed EUR 50,000.00. This reflects the contract maximum for this period of performance.

C. Second Option Year of Service

Description	Estimated Monthly Qty	Estimated Yearly Qty	Unit of Measure	Unit Price	Total Price per Year
Regular Service Fees					
1b. Activation Fee (per line)	n/a	10	line	€	€
2b. All other Administrative Fees (per line/month)	175	2,100	line/month	€	€

3b. Unlimited Calls from Latvia to any EEA country (per line/month)	175	2,100	line/month	€	€
4b. Unlimited Text messages from Latvia to any EEA country (per line/month)	175	2,100	line/month	€	€
5b. Unlimited Calls from any EEA country to other EEA countries (roaming, per line/month)	175	2,100	line/month	€	€
6b. Unlimited Text messages from any EEA country to other EEA countries (roaming, per line/month)	175	2,100	line/month	€	€
7b. Unlimited data plan for data usage in Latvia. Data plan 10GB in EEA (per line /month, EU fair use policy).	175	2,100	line/month	€	€
Uncommon Fees					
8b. Data usage in the USA (roaming per GB)	10	120	GB/month	€	€
9b. Data usage in the EEA (roaming per GB, above fair use)	5	60	GB/month	€	€
10b. Data Usage in Other Countries (roaming per GB)	5	60	GB/month	€	€
11b. Calls to Satellite and Global/International Networks (per minute)	1	12	minute/month	€	€
12b. Calls to the United States (per minute)	120	1440	minute/month	€	€
13b. Calls to Other Countries (per minute)	120	1440	minute/month	€	€
14b. Text Messages to the United States (per message)	100	1200	minute/month	€	€
15b. Text Messages to Other Countries (per message)	100	1200	minute/month	€	€
16b. Dedicated mobile Internet service	2	24	line/month	€	€
17b. Static IP for dedicated mobile Internet service	2	24	line/month	€	€
Base Year Summary Month/Year					
18b. Base Year of Service Total for services per month (CLIN 2b-CLIN 17b)			€		
Base Year Total for Services Per Year					
19b. Base Year of Service Total for services per year (CLIN 18b x 12 months+ CLIN 1b)			€		

If the price cannot be provided in accordance with our requirements for Uncommon Fees (CLIN 8b – CLIN 17b), please submit your own price list for all required countries as an attachment to your offer.

During this contract period, the Government shall place orders totaling a minimum of Euro 2,000.00. This reflects the contract minimum for this period of performance. The total amount of all orders shall not exceed EUR 50,000.00. This reflects the contract maximum for this period of performance.

D. Third Option Year of Service

Description	Estimated Monthly Qty	Estimated Yearly Qty	Unit of Measure	Unit Price	Total Price per Year
Regular Service Fees					
1c. Activation Fee (per line)	n/a	5	line	€	€
2c. All other Administrative Fees (per line/month)	180	2,160	line/month	€	€
3c. Unlimited Calls from Latvia to any EEA country (per line/month)	180	2,160	line/month	€	€
4c. Unlimited Text messages from Latvia to any EEA country (per line/month)	180	2,160	line/month	€	€
5c. Unlimited Calls from any EEA country to other EEA countries (roaming, per line/month)	180	2,160	line/month	€	€
6c. Unlimited Text messages from any EEA country to other EEA countries (roaming, per line/month)	180	2,160	line/month	€	€
7c. Unlimited data plan for data usage in Latvia. Data plan 10GB in EEA (per line /month, EU fair use policy).	180	2,160	line/month	€	€
Uncommon Fees					
8c. Data usage in the USA (roaming per GB)	10	120	GB/month	€	€
9c. Data usage in the EEA (roaming per GB, above fair use)	5	60	GB/month	€	€
10c. Data Usage in Other Countries (roaming per GB)	5	60	GB/month	€	€
11c. Calls to Satellite and Global/International Networks (per minute)	1	12	minute/month	€	€
12c. Calls to the United States (per minute)	120	1440	minute/month	€	€
13c. Calls to Other Countries (per minute)	120	1440	minute/month	€	€
14c. Text Messages to the United States (per message)	100	1200	minute/month	€	€
15c. Text Messages to Other Countries (per message)	100	1200	minute/month	€	€
16c. Dedicated mobile Internet service	2	24	line/month	€	€
17c. Static IP for dedicated mobile Internet service	2	24	line/month	€	€
Base Year Summary Month/Year					
18c. Base Year of Service Total for services per month (CLIN 2c-CLIN 17c)			€		
Base Year Total for Services Per Year					
19c. Base Year of Service Total for services per year			€		

(CLIN 18c x 12 months+ CLIN 1c)			
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If the price cannot be provided in accordance with our requirements for Uncommon Fees (CLIN 8c – CLIN 17c), please submit your own price list for all required countries as an attachment to your offer.

During this contract period, the Government shall place orders totaling a minimum of Euro 2,000.00. This reflects the contract minimum for this period of performance. The total amount of all orders shall not exceed EUR 50,000.00. This reflects the contract maximum for this period of performance.

E. Fourth Option Year of Service

Description	Estimated Monthly Qty	Estimated Yearly Qty	Unit of Measure	Unit Price	Total Price per Year
Regular Service Fees					
1d. Activation Fee (per line)	n/a	5	line	€	€
2d. All other Administrative Fees (per line/month)	185	2,220	line/month	€	€
3d. Unlimited Calls from Latvia to any EA country (per line/month)	185	2,220	line/month	€	€
4c. Unlimited Text messages from Latvia to any EEA country (per line/month)	185	2,220	line/month	€	€
5d. Unlimited Calls from any EEA country to other EEA countries (roaming, per line/month)	185	2,220	line/month	€	€
6d. Unlimited Text messages from any EEA country to other EEA countries (roaming, per line/month)	185	2,220	line/month	€	€
7d. Unlimited data plan for data usage in Latvia. Data plan 10GB in EEA (per line /month, EU fair use policy).	185	2,220	line/month	€	€
Uncommon Fees					
8d. Data usage in the USA (roaming per GB)	10	120	GB/month	€	€
9d. Data usage in the EEA (roaming per GB, above fair use)	5	60	GB/month	€	€
10d. Data Usage in Other Countries (roaming per GB)	5	60	GB/month	€	€
11d. Calls to Satellite and Global/International Networks (per minute)	1	12	minute/month	€	€
12d. Calls to the United States (per minute)	120	1440	minute/month	€	€
13d. Calls to Other Countries (per minute)	120	1440	minute/month	€	€
14d. Text Messages to the United States (per message)	100	1200	minute/month	€	€
15d. Text Messages to Other Countries (per message)	100	1200	minute/month	€	€
16d. Dedicated mobile Internet service	2	24	line/month	€	€

17d. Static IP for dedicated mobile Internet service	2	24	line/month	€	€
Base Year Summary Month/Year					
18d. Base Year of Service Total for services per month (CLIN 2d-CLIN 17d)			€		
Base Year Total for Services Per Year					
19d. Base Year of Service Total for services per year (CLIN 18d x 12 months+ CLIN 1d)			€		

If the price cannot be provided in accordance with our requirements for Uncommon Fees (CLIN 8d – CLIN 17d), please submit your own price list for all required countries as an attachment to your offer.

During this contract period, the Government shall place orders totaling a minimum of Euro 2,000.00. This reflects the contract minimum for this period of performance. The total amount of all orders shall not exceed EUR 50,000.00. This reflects the contract maximum for this period of performance.

F. Value Added Tax. Value Added Tax (VAT) is not applicable to this contract and shall not be included in the CLIN rates or Invoices because the U.S. Embassy has a tax exemption certificate from the host government.

G. Grand Total

Base Year Total	€
First Option Year Total	€
Second Option Year Total	€
Third Option Year Total	€
Fourth Option Year Total	€
GRAND TOTAL FOR BASE + ALL OPTION YEARS	€

**CONTINUATION TO SF-1449
RFQ NUMBER 19LG7526Q0002
INDEFINITE DELIVERY/INDEFINITE QUANTITY CONTRACT
SCHEDULE OF SERVICES, BLOCK 20**

1. PERFORMANCE WORK STATEMENT

This requirement is for mobile telephone services. The U.S. Embassy uses approximately 150-185 lines for official purposes. The Contractor shall provide reliable, secure, and comprehensive cellphone subscription services to support the operational, administrative, and mission requirements of the U.S. Embassy in Riga, Latvia. These services are essential for Embassy staff mobility, secure communications, and effective mission execution both within Latvia and internationally.

1.1 SCOPE

The Contractor shall deliver mobile voice, SMS, and data services, including international roaming, for approximately 150-185 Embassy-issued lines as described in this PWS. Services shall support both physical SIM and eSIM technologies and shall be available for use in Latvia, the United States, the European Economic Area (EEA), and globally. The Contractor shall ensure all services meet the Government's requirements for coverage, connectivity, account management, customer support, and regulatory compliance, as specified in this PWS.

1.2 PERFORMANCE WORK REQUIREMENTS

- Maintain all subscribed lines with active voice, SMS, and data services, including unlimited calls and texts within Latvia and the EEA, and unlimited data in Latvia with a minimum of 10 GB in the EEA, in accordance with EU fair use policy.
- Provide international roaming with minimum data allowances as specified, ensuring reliable connectivity in the United States, the EEA, and other global locations.
- Assign a dedicated account manager, fluent in Latvian and English, as a single point of contact for all contract matters.
- Ensure compatibility with standard unlocked GSM/LTE/5G mobile devices, including iPhones, Android devices, and IoT devices.
- Support number portability for all lines, with an estimated 150 -185 numbers to be ported.
- Offer dedicated mobile internet services, such as data-only SIM cards, with flexible data plans and the option for a fixed (static) IP address.
- Ensure that no infrastructure or equipment manufactured by ZTE, Huawei, Xiaomi, or any affiliated entities is used, in compliance with NDAA Section 889.
- Enable the Government to add new cellular lines at any time during the contract period, with activation and service readiness for each new line achieved within twenty-four (24) hours of receiving a written request.
- Enable the Government to cancel or deactivate any cellular line at any time during the contract period, with deactivation and service termination for each cancelled line achieved within twenty-four (24) hours of receiving a written request.

1.3 PERFORMANCE STANDARDS

<u>Performance Metric</u>	<u>Standard / Acceptable Quality Level (AQL)</u>
Service Availability	≥99% uptime per month
Roaming Data in EEA	≥10 GB per line/month at fixed price

<u>Performance Metric</u>	<u>Standard / Acceptable Quality Level (AQL)</u>
Roaming Data in United States	≥1 GB per line/month at fixed price
Roaming Data in Other Countries	≥1 GB per line/month at fixed price
Billing/Reporting Timeliness	100% by 10th calendar day each month
Customer Support Response	≥98% within 1 business day
Regulatory Compliance	100% at all times

1.4 DELIVERABLES

- Secure access to an online account management platform with all required features, including up-to-date usage data, SIM/eSIM management, and downloadable reports accessible to authorized Government personnel.
- Reports on service usage, network incidents, and emergency response actions as requested by the Government.
- Evidence of compliance with NDAA Section 889 and all regulatory requirements upon request.
- Written confirmation to the Government upon successful activation or cancellation of any line.

1.5 TRANSITION PLAN

- The Contractor shall ensure a seamless transition-in at contract start, including timely activation and porting of all required lines, and uninterrupted service for all users.
- The Contractor shall ensure a seamless transition-out at contract completion or termination, including timely deactivation or transfer of lines, return of Government data, and continued service until the final day of the period of performance.
- The Contractor shall coordinate all transition activities with the designated Government point of contact to prevent service disruptions.

1.6 NON-OFFICIAL LINES

This Contract is valid only for official Government needs.

2. MINIMUM TECHNICAL REQUIREMENTS

2.1 NETWORK COVERAGE

The service provider shall offer continuous cellular network coverage throughout the entire territory of Latvia and provide international roaming coverage globally, including the United States and the European Economic Area (EEA). The service provider's network shall support 5G service wherever available, in addition to 4G/LTE and legacy technologies.

2.2 SIM AND ESIM SUPPORT

The service provider shall support both physical SIM cards and eSIM activation for all lines, with the ability to provision, activate, and deactivate either type upon Government request. The service provider shall ensure that blank SIM cards are available and provided upon request for new line provisioning.

2.3 VOICE AND DATA SERVICES

The service provider shall provide voice calling, SMS, and data services (minimum 4G/LTE) for all subscribed lines. Each line shall have a minimum monthly data allowance of 10 GB at full speed before throttling or overage charges apply.

2.4 WiFi CALLING

The service provider shall support WiFi calling functionalities for all lines and compatible devices.

2.5 INTERNATIONAL ROAMING

The service provider shall provide as extensive international roaming connectivity as possible, ensuring reliable roaming service globally. The Government places special interest on comprehensive roaming coverage within the United States and the European Economic Area (EEA). For roaming within the EEA, the service provider shall offer a minimum of 10 GB of data per line at a fixed price. For roaming within the United States, the service provider shall offer a minimum of 1 GB of data per line at a fixed price. For roaming in other countries, the service provider shall offer a minimum of 1 GB of data per line at a fixed price.

2.6 VOICEMAIL SERVICE

The service provider shall provide voicemail functionality for all lines.

The voicemail system shall support user interface and prompts in English, and shall allow users to record greetings, retrieve messages, and manage settings in English.

2.7 MONTHLY CALL LOGS AND BILLING

The service provider shall provide itemized monthly call logs and detailed billing statements for each line, including all voice, SMS, and data usage, as well as all charges and fees.

Billing and call logs shall be provided in electronic format (e.g., Excel or PDF) and delivered no later than the 10th calendar day of each month.

2.8 ON-LINE ACCOUNT MANAGEMENT PLATFORM

The service provider shall provide a secure, on-line account management platform accessible to authorized Government personnel.

The platform shall, at a minimum, provide the following capabilities:

- a. Management of SIM and eSIM card assignment to phone numbers, including activation, deactivation, and reassignment.
- b. Up-to-date viewing of usage data (voice, SMS, data) for each line.
- c. Downloading of call logs, billing statements, and usage reports.
- d. Management of service features and options (e.g., enabling/disabling roaming, data plans, or international calling).
- e. Secure login and data protection in accordance with industry best practices.

2.9 ACCOUNT MANAGEMENT

The service provider shall assign a dedicated Account Manager as a single point of contact for all service, billing, and support issues as per Paragraph 4, Key Personnel. Project management services shall be provided in both Latvian and English.

2.10 CUSTOMER SUPPORT

The Contractor shall provide technical support in both English and Latvian for setting up voice mail, roaming questions, questions on the phone features, number changes, lost or stolen telephone reporting, manufacturer's warranty information, and all other matters concerning the mobile telephone services, including live human reception after standard business hours, including weekends and holidays, for urgent service issues, and a direct support line for preferred clients, enabling expedited access to support personnel for critical or high-priority requests

2.11 DEVICE COMPATIBILITY

The service provider's network shall be compatible with standard unlocked GSM/LTE/5G mobile devices, including but not limited to regular smartphones (such as iPhones and Android devices) and Internet of Things (IoT) devices.

2.12 NUMBER PORTABILITY

The service provider shall support number portability for all lines, allowing the Government to retain existing phone numbers. The current estimated count of numbers to be ported is 150-185.

2.13 NETWORK RESILIENCE AND EMERGENCY PREPAREDNESS

The service provider shall ensure that its network infrastructure is robust and resilient, supporting reliable service continuity under normal and emergency conditions. The service provider shall maintain and implement appropriate measures for emergency preparedness and rapid service restoration in the event of disruptions, in accordance with industry best practices.

2.14 DEDICATED MOBILE INTERNET SERVICES

The service provider shall offer the option to provision dedicated mobile internet services, such as data-only SIM cards, separately from regular voice and data subscription services. These dedicated mobile internet services shall include support for 4G/LTE and 5G connectivity, with flexible data plans and the ability to assign and manage these services independently of standard voice lines. The service provider shall also offer the option to provision a fixed (static) IP address for dedicated mobile internet services.

2.15 NDAA SECTION 889 COMPLIANCE

The Contractor shall provide mobile telephone and data services to the Embassy of the United States of America in Riga, Latvia without the use of infrastructure or equipment manufactured by ZTE, Huawei, and Xiaomi-branded products, or any affiliated entities. The exclusion of these manufacturers is required to ensure compliance with Section 889 of the National Defense Authorization Act (NDAA).

2.16 SCHEDULED / UNSCHEDULED / EMERGENCY REQUIREMENTS

The Contractor shall promptly notify the Government of any planned or unplanned service interruptions and shall restore services as quickly as possible in accordance with contract performance standards.

2.17 SURVIVABILITY AND RECOVERY

The Contractor shall have a working system of network survivability in case of emergencies and serious disasters when all networks may be jammed or when parts of the network are destroyed.
The Contractor shall have a recovery plan in place that shall deal with such occurrences.

3. INVOICING

(a) The Contractor shall submit monthly invoices to the COR at the address shown in paragraph d below. A proper invoice must include the following information:

- Contractor's name and bank account information for payments by wire transfers;
- Invoice Date;
- Contract Number;
- A summary showing a listing of each line with total monthly price in local currency for that line. A detailed invoice for each agency has to be attached to each summary invoice and should include the cost breakdown by each telephone line according to the pricing schedule.
- A detailed list of all calls made for each line;
- Prompt payment discount, if any;
- Name, title, phone number, and address of person to contact in case of defective invoice.

(b) If an invoice does not contain the above information, the Government reserves the right to reject the invoice as improper and return it to the Contractor within 7 calendars days. The Contractor must then submit a proper invoice.

(c) The COR will take each summary invoice and furnish the detailed invoice to the appropriate official in each individual Government agency. That agency representative will review the detailed invoice and either approve for payment or advise the COR of the inaccuracies found. It shall be the COR who will interact with the Contractor on any invoice problems.

(d) The Contractor will send all invoices to the following address:

riga.billing.office@state.gov

(e) Payment shall be made in local currency by Electronic Funds Transfer (EFT) within 30 days after receipt of the proper invoice.

(f) The Government will provide annual proof of a direct exemption of Value Added Tax (VAT); according to host country VAT laws.

4. KEY PERSONNEL

4.1 The Account Manager must be able to converse in English and Latvian. The Contractor shall assign to this contract the following key person:

<u>POSITION/FUNCTION</u>	<u>NAME</u>	<u>CONTACT INFORMATION</u>
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Account Manager		
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4.2 During the first 90 days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is required due to illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required below to the Contracting Officer at least 15 days before making any permanent substitutions.

4.3 After the first 90 days of performance, the Contractor may substitute a key person if the Contractor determines that it is necessary. The Contractor shall notify the Contracting Officer of the proposed action

immediately. Prior to making the substitution, the Contractor will provide the information required below to the Contracting Officer.

4.4 The Contractor shall provide a detailed explanation of the circumstances requiring the proposed substitution, a complete resume for the proposed substitute. The proposed substitute shall possess qualifications comparable to the original key person. The Contracting Officer will notify the Contractor of its approval or disapproval of the substitution within 15 calendar days after receiving the required information. The Government will modify the contract to reflect any changes in key personnel.

5. PERMITS

Without additional cost to the Government, the Contractor shall obtain all permits, licenses, and appointments required for the work under this contract. The Contractor shall obtain these permits, licenses, and appointments in compliance with applicable laws in Latvia.

6. GOVERNMENT FURNISHED PROPERTY

6.1 The Government intends to use the Government Owned Equipment.

6.2 The Contractor shall provide a fully functional SIM card or e-SIM card, and appropriate security codes.

7. DISCLOSURE OF INFORMATION

Any information made available to the Contractor by the Government shall be used only for the purpose of carrying out the provisions of this contract and shall not be divulged or made known in any manner to any person except as may be necessary in the performance of the contract.

8. TECHNOLOGICAL REFRESHMENT

After contract award, the Government may; pursuant to FAR clause 52.212-4 - Contract Terms and Conditions –Commercial Items, paragraph (c), Changes; request changes within the scope of the contract. These changes may be required to improve performance or react to changes in technology.

The Contractor may propose for the Government's technological refreshment, substitutions or additions for any provided products or services that may become available as a result of technological improvements. The Government may, at any time during the term of this contract or any extensions thereof, modify the contract to acquire products which are similar to those under the contract and that the Contractor has, or has not, formally announced for marketing purposes. This action is considered to be within the scope of the contract. At the option of the Government, a demonstration of the substitute product may be required. The Government is under no obligation to modify the contract in response to the proposed additions or substitutions.

Such substitutions or additions may include any part of, or all of, a given product(s) provided that the following conditions are met and substantiated by documentation in the technological refreshment proposal:

The proposed product(s) shall meet all of the technical specifications of this document and conform to the terms and conditions cited in the contract.

The proposed product(s) shall have the capacity, performance, or functional characteristics equal to or greater than, the current product(s).

The proposal shall discuss the impact on hardware, services, and delivery schedules. The cost of the changes not specifically addressed in the proposal shall be borne entirely by the Contractor.

Contractor has the right to withdraw, in whole or in part, any technological refreshment proposal prior to acceptance by the Government. Contractor will use commercially reasonable efforts to ensure that prices for substitutions or additions are comparable to replaced or discontinued products. If a technological refreshment proposal is accepted and made as part of this contract, an equitable adjustment, increasing or decreasing the contract price, may be required and any other affected provisions of this contract shall be made in accordance with FAR clause 52.212-4, paragraph (c), Changes, and other applicable clauses of the contract.

9. SPECIAL SHORT-TERM PROMOTION

For the entire contract duration, the Contractor will offer the U.S. Embassy the option to take advantage of any promotional programs that it offers and that is suited for use by U.S. Embassy staff. The U.S. Embassy, at its own discretion, will have the option to take or reject the opportunity.

10. DELIVERY ORDERS

The Contracting Officer will issue delivery orders to order phone and services to the Contractor for performance of work under this contract. If an order is given orally, it will be followed up by a written delivery order within 7 days.

11. QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Performance Standard	PWS Paragraphs	AQL (Acceptable Quality Level)	Surveillance method	Frequency
Service Availability	≥99% uptime per month for all lines	1-2	No more than 1% downtime per month	Service monitoring, user reports	Monthly
Roaming Data in EEA	≥10 GB per line/month at fixed price	1-2	100% of lines meet or exceed data spec	Usage/billing reports	Monthly
Roaming Data in United States	≥1 GB per line/month at fixed price	1-2	100% of lines meet or exceed data spec	Usage/billing reports	Monthly
Roaming Data in Other Countries	≥1 GB per line/month at fixed price	1-2	100% of lines meet or exceed data spec	Usage/billing reports	Monthly

Billing/Reporting Timelines	100% by 10th calendar day each month	2.7, 2.8, 3	100% on-time, complete, accurate	COR review, document audit	Monthly
Customer Support Response	≥98% of requests responded to within 1 business day; live human reception after hours	1.3, 2.10	98% or higher	Test calls, user feedback	Quarterly
Regulatory Compliance	100% compliance with NDAA Section 889 and Latvian law	1-2	100% at all times	Document review, regulatory checks	Annually/As needed
Account Management	Dedicated manager, Latvian & English, available throughout POP	1.1., 1.4, 2.8, 2.9, 4	100% of issues responded to within 1 business day	COR communication log	Monthly
Number Portability	100% of port requests completed within 5 business days	1.2, 2.12	100%	Porting records, COR review	As needed
Addition/Cancellation of Lines	Activation/cancellation within 24 hours of request	1.2, 1.4	100%	COR review, service records	As needed

11.1 SURVEILLANCE METHODS.

- (a) Direct Observation: The COR will observe service delivery, platform functionality, and device compatibility, and document all unsatisfactory performance cases.
- (b) User Feedback: Collection and review of user complaints, trouble tickets, and satisfaction surveys.
- (c) Document Review: Examination of call logs, billing statements, regulatory documents, and incident reports.
- (d) Test Calls/Transactions: Placing test calls, activating/deactivating lines, and using platform features to verify compliance.

11.2 STANDARD

The performance standard requires that the Government receive no more than two (2) customer complaints per month or identify no more than two (2) performance deficiencies per month. The COR shall notify the Contracting Officer of any complaints and performance issues so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions—Commercial Items) when the standard is exceeded.

11.3 PROCEDURES

- (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact COR.

- (b) The COR will complete appropriate documentation to record the complaint or performance deficiency.
- (c) The COR shall maintain a surveillance log documenting all complaints, findings, deficiencies, and corrective actions.
- (d) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
- (e) If the COR determines the complaint or performance deficiency is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
- (f) The COR shall, as a minimum, orally notify the Contractor of any valid complaints and performance deficiencies.
- (g) If the Contractor disagrees with the complaint or performance deficiency after investigation of the site and challenges the validity of the complaint or performance deficiency, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint or performance deficiency.
- (h) The COR will consider complaints as resolved unless notified otherwise by the complainant.
- (i) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

ATTACHMENT 1
CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) Questionnaire and/or State
Department Secure Software Development Attestation Form

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) QUESTIONNAIRE

Instructions:

- This worksheet shall be completed by the vendor responsible for submitting the offer. References to "organization" refer to the offering entity. If the offering entity is a joint venture (JV), the response may come from either the JV or from the JV managing partner.
- Provide the requested inputs in the gray shaded lines of the template under column D, Vendor Response, for all Items Numbers for Sections 1-3. Offerors are advised that the Government may request documentation from the Offerors to validate the responses provided.

SECTION 1 - CONTACT INFORMATION

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	
1.1	Enter the name of your company.		
1.2	Enter the name of the primary Point-Of-Contact (POC) for your company that the Government may contact to discuss the vendor inputs on this questionnaire.		
1.3	Enter the job title of the primary POC.		
1.4	Enter the phone number of the primary POC in the following format: (555) 555-5555		
1.5	Enter the e-mail address of the primary POC.		

SECTION 2 VENDOR RISK MANAGEMENT PLAN

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	NIST SP 800-53 Reference
2.1	Does your organization identify its key supply chain threats? (Note: if you do not have suppliers, answer "Yes")		IR-8, SR-7
2.2	Does your organization map key suppliers to your supply chain threats? (Note: if you do not have suppliers, answer "Yes")		IR-8, SR-7
2.3	Does your organization have written SCRM requirements in contracts with your key suppliers? (Note: if you do not have suppliers, answer "Yes")		SA-4
2.4	Does your organization verify that your suppliers meet SCRM requirements through contractual terms and conditions? (Note: if you do not have suppliers, answer "Yes")		SR-6

SECTION 3 PHYSICAL AND PERSONNEL SECURITY

ITEM NO.	ITEM DESCRIPTION	VENDOR RESPONSE	NIST SP 800-53 Reference
3.1	Does your organization have policies for conducting background checks of your employees as permitted by the country in which your organization operates?		PE-2, PE-3 PS-3
3.2	Does your organization have procedures in place to prevent tampering of Information and Communications Technology (ICT) equipment stored as supply chain inventory?		SR-9 AC-1
3.3	Do you provide literacy training on recognizing and reporting potential indicators of insider threat?		AT-2(2)

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (NOV 2023) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A)

**ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12**

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://e-cfr.gov) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE INCORPORATED
BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)
52.204-27	PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.228-4	WORKER’S COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)
52.229-6	TAXES-FOREIGN FIXED-PRICE CONTRACTS (FEB 2013)
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of award through base period or option periods if exercised.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when –
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either –
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than EUR 2,000.00 the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) Maximum order. The Contractor is not obligated to honor-
 - (1) Any order for a single item in excess of EUR 50,000.00;
 - (2) Any order for a combination of items in excess of EUR 100,000.00; or
 - (3) A series of orders from the same ordering office within 365 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.
- (c) If this is a requirements contract (i.e., includes the Requirement clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.
- (d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within five (5) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after the contract's effective period.

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS

As prescribed in 40.205(b), insert the following clause:

SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION DATE)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

- (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
- (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

- (i) Of that equipment; or
- (ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;
- (2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but
- (3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

- (1) The Office of the Director of National Intelligence;

- (2) The Central Intelligence Agency;
- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

- (i) Contract number and order number, if applicable;
- (ii) The specific prohibition the product or service is not complying with;
- (iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);
- (iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));
- (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
- (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);
- (vii) Whether alternative products or services are available that would comply with the prohibition;
- (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.
- (j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g., "John Smith, Office of Human Resources, ACME Corporation Support Contractor");
- 2) Clearly identify themselves and their contractor affiliation in meetings;
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- 4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

- (1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.216-70 ORDERING - INDEFINITE-DELIVERY CONTRACT (APR 2004)

The Government shall use one of the following forms to issue orders under this contract:

(a) The Optional Form 347, *Order for Supplies or Services*, and Optional Form 348, *Order for Supplies or Services Schedule - Continuation*; or,

(b) The DS-2076, *Purchase Order, Receiving Report and Voucher*, and DS-2077, *Continuation Sheet*.

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices in to the office identified in Block 18b of the SF-1449. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.239-800 CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT REQUIREMENTS (AUG 2024)

(a) Definitions. As used in this clause:

Covered article - The term "covered article" includes-

(1) "Information and Communications technology" which is an industry term for information technology that is involved in integrating telecommunications (e.g., telephone lines and wireless signals) and computers to enable users to access, store, manipulate, transmit, and receive digital information. This includes software, software as a service, digital and data services, and hardware components that support information creation, storage, transfer, and management, like computers and smartphones.

(2) "Telecommunications Equipment", which means equipment, other than customer premises equipment, used by a carrier to provide telecommunications services, and includes software integral to such equipment (including upgrades).

- (3) "Telecommunications Service", which means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.
- (4) "Cybersecurity Supply Chain Risk", which means the risk that a person may sabotage, maliciously introduce unwanted function, extract data, or otherwise manipulate the design, integrity, manufacturing, production, distribution, installation, operation, maintenance, disposition, or retirement of covered articles to surveil, deny, disrupt, or otherwise manipulate the function, use, or operation of the covered articles or information stored or transmitted on the covered articles.
- (5) "Incident," which means, per the Federal Information Security Modernization Act of 2014, "an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies."
- procedures, internal controls, or implementation that could be exploited or triggered by a threat source.
- (b) *Contractor Cybersecurity Supply Chain Risk Management Responsibilities.* The Contractor must regularly identify, assess, monitor, and mitigate cybersecurity supply chain risks when providing covered articles or services to the Government. The Contractor shall maintain artifacts (i.e., any byproduct of hardware or software development that helps describe the architecture, design, and function of that hardware or software) that document its compliance with this paragraph and shall provide these artifacts to the Government within 48 hours of request, which may be redacted to remove sensitive proprietary information.
- (c) *Supporting Government Cybersecurity Supply Chain Risk Assessments.* No more than an estimated once per year, the Contractor must provide any requested information related to its supply chain within 10 business days except information that is protected by a non-disclosure agreement with its customers (e.g., another federal agency).
- (d) *Novation Agreement Notice.* FAR 42.1203 require Government approval of novation agreements. For proposed novation agreements for this contract, the Contractor shall provide any information requested by the Government regarding the proposed successor's identity and information regarding its supply chain.
- (e) *Notification procedures for cybersecurity supply chain incidents.* When an incident occurs, the Contractor must contact the CO or their designee within 72 hours of the incident.
- (f) *Subcontracts.* The Contractor shall insert the substance of this clause in all subcontracts and other contractual instruments in support of this contract.
- (g) *Attestation following Major Version Change.* For software provided by the Contractor or subcontractors and is modified under the contract that required an approved Secure Software Development Attestation Form, the responses on this form apply to the software's major version changes (e.g., using a semantic versioning schema of Major.Minor.Patch, the software version number goes from 2.5 to 3.0) unless the Contractor otherwise notifies the Contracting Officer that the form is no longer valid. This notification to the Contracting Officer must be submitted within 15 days of the major version change and must include a new completed and signed Secure Software Development Attestation Form.

(End of clause)

652.239-801 DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)

(a) *Definitions.* As used in this clause-

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.

ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.

- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
 - iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.
- (b) Disclosure of AI Use in Contract Performance. When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:
- Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.
- These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.
- The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

(End of Clause)

652.239-803 ARTIFICIAL INTELLIGENCE CLAUSE (DEVIATION) (SEPT 2025)

(a) *Definitions.* As used in this clause-

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

AI Incident: The term "AI incident" refers to a violation or immediate threat of violation of AI policies, acceptable use policies for the AI system or service, or standard AI practices. Examples of AI incidents include:

- i. An AI system malfunctions due to a bug or development flaw, creating a potential harm to an individual's rights or safety, a potential harm to property, or a potential disruption to the management and operation of critical infrastructure;
 - ii. An AI service generates harmful, false, inappropriate, or erroneous outputs, impacting or potentially impacting individuals or a group of people; and
 - iii. A user employs an AI system in ways that violate ethical guidelines or Department acceptable use policies, such as using a facial recognition system for unauthorized surveillance.
- Non-Public Information-*Non-Public Information refers to any data, materials, or knowledge that is not publicly available or accessible, including but not limited to proprietary business information, technical data, personally identifiable information (PII), trade secrets, internal communications, and any information protected under

applicable laws and regulations. This information must be handled in accordance with all relevant international, federal, and local privacy and security requirements applicable to the global scope of this contract.

Significant Modification—The term significant modification refers to an update to an AI application or to the conditions or context in which it is used, such as through changing its functionality, underlying structure, or performance, that meaningfully alters the AI’s impact, rendering prior evaluations, training, or documentation misleading to users, overseers, or individuals affected by the system. This includes significantly changing the context, scope, or intended purpose in which the AI is used. In case there is any doubt or ambiguity as to whether an event constitutes a significant modification for purposes of this clause, the contractor will present the issue to the contracting officer, whose decision on the matter will be final.

(b) *Use of Government Data and AI Outputs.* The Contractor shall ensure that its employees, subcontractors, affiliates, and agents do not use any nonpublic information, data, or content provided by the Government under this contract—whether inputted by the agency into an AI-enabled system or generated as an output of such a system—to train, fine-tune, or improve any publicly or commercially available AI system or model, including but not limited to foundation models, large language models (LLMs), or general-purpose AI tools without written authorization from the Contracting Officer in consultation with the AI Investment Management Group (AIM Group).

(c) *Privacy Compliance in AI Systems Involving Personally Identifiable Information (PII).* The Contractor shall ensure full compliance with all applicable Federal privacy laws, regulations, executive orders, and agency-specific privacy policies when developing, deploying, operating, or maintaining any AI system or service under this contract that will create, collect, use, process, store, maintain, disseminate, disclose, or dispose of Federal information containing personally identifiable information.

1. *Incident Reporting.* During the performance of this contract, the Contractor must comply with 12 FAM 550 Security Incident Program. Additionally, the Contractor shall report all AI incidents to CIRT@state.gov. CIRT will review and assess to determine if the reported event is a potential cybersecurity and/or AI incident. Based on the cause of the event, the nature and scope of the potential threat, and other operational impacts, the event may be classified as a cybersecurity and/or serious AI incident and escalated for subsequent reporting, analysis, and the coordination of incident response actions, which will require the Contractor to provide additional details regarding the reported incident. In all AI incidents, contractors must notify the Responsible AI Official via RAIO@state.gov and follow Incident Response Processes. In instances when PII is involved in actual or suspected AI incidents, contractors are also responsible for adhering to 5 FAM 465. Contractors must report the AI incident to the Privacy Office using the Department’s Breach Incident Form (access to this online form will be provided after contract award) or contacting PRVIncidents@state.gov.

2. The obligations in this clause apply to all prime contractors, subcontractors, vendors, and third parties who handle PII on behalf of the Contractor and must be flowed down to all relevant subcontracts.

(d) *Compliance with Minimum Risk Management Standards.* The Contractor shall comply with the minimum AI risk management practices for high-impact use cases as required by OMB M-25-21. These include but are not limited to the following:

1. Applying the NIST AI Risk Management Framework;
2. Supporting agency-led impact assessments;
3. Ensuring transparency of system design, data lineage, and decision logic.

(e) *Evaluation and Monitoring of AI System Performance.* The Contractor shall allow the agency to perform quarterly or biannual evaluations of AI system performance, risks, and effectiveness.

1. The Government anticipates that independent testing will use internal datasets to reflect real-world operational use cases as closely as possible. These datasets:

- Will remain confidential and will not be shared with the Contractor; and
- Will be used solely for the purpose of evaluating system performance.

2. Within 10 business days of the Government’s notice to conduct independent testing, the Contractor shall provide the agency with access to necessary documentation, system resources and operational time. If testing is performed by the Contractor, the Government reserves the right to: -

- Independently reproduce or verify test results; and
- Review and access all test methodologies and outcomes to ensure transparency and accuracy.

3. Within 10 business days of a Government request, the Contractor shall provide detailed documentation of internal testing procedures and collaborate with the agency to ensure alignment with evaluation objectives. The Government anticipates issuing these requests no more than two times per year. The Contractor agrees that testing results and methodologies may be used internally by the agency for performance assessments and operational improvements, while safeguarding proprietary information and intellectual property.

(f) *Performance Monitoring and Remediation Requirements.* The Contractor shall regularly:

1. Monitor the AI system's performance in operational environments;
2. Identify and rectify unacceptable system behavior;
3. Ensure any new AI version meets predefined performance thresholds before deployment;
4. Rollback to a previous version if performance degradation is detected.

(g) *New AI Feature Integration Notification.* The Contractor shall provide written notification to the Contracting Officer or their designated representative at least ten business days before implementing any of the following proposed changes to High-Impact AI use cases, or when functionality newly meets the High-Impact threshold:

- Material changes to the AI system;
- Addition of new AI algorithms or features;
- Significant Modifications to underlying models or data sources.

The notification shall include:

- A clear description of the proposed change;
- Anticipated impacts on system performance, security, or compliance;
- Risk mitigation strategies; and
- Documentation demonstrating continued adherence to applicable federal standards, including OMB M-25-21 and M-25-22.

The Government will review the proposed changes to ensure alignment with operational requirements, compliance standards, and risk management protocols. Approval or disapproval by a designated representative to the Contracting Officer will be communicated prior to deployment.

(h) *Maximize Use of American-Made AI.* The Vendor shall disclose whether the Artificial Intelligence (AI) system provided under this Agreement was developed and is maintained entirely within the United States. If any portion of the AI system was developed or is maintained outside the United States, the Vendor shall disclose the foreign jurisdiction(s) involved and describe the nature and extent of such development or maintenance activities. This disclosure shall be provided to ensure compliance with federal policies governing AI systems and applicable national security requirements pursuant to OMB Memorandum M-25-22, Section 3(c).

(End of Clause)

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is Systems Analyst, Diplomatic Technology Section.

(End of Clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

(End of Clause)

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

(End of Clause)

SECTION 3 - SOLICITATION PROVISIONS**52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL ITEMS (SEP 2023) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)****ADDENDUM TO 52.212-1**

A. SUMMARY OF INSTRUCTIONS. Each offer must consist of the following:

A.1. CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT C-SCRM Proposal/Quote Instructions (corresponding instructions to the factor below)

Cybersecurity Supply Chain Risk Management (C-SCRM) Forms

The offeror shall include in its offer Attachment No. 1, C-SCRM Questionnaire. In lieu of a completed C-SCRM Questionnaire, the vendor may submit a third party authorizing official conducted assessment, such as ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization.

Failure to provide the required attachment may result in rejection of the offer.

A.2. SF-1449. A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate), and Sections 1 and 5 have been filled out.

A.3. INFORMATION. Information demonstrating the offeror's/quoter's ability to perform, including:

- (1) Name of a Project Manager who understands written and spoken English;
- (2) Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing in Latvia or plans to establish an office within 30 days of contract award.
- (3) The offeror shall provide proof of SAM registration to include the SAM UEI number.
- (4) List of clients over the last three (3) years, demonstrating prior experience with relevant past performance information in providing cellular communication services of similar size and complexity and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in Latvia, then the offeror shall provide its international experience. The offeror shall not have any record of contract termination for default or negative performance evaluation for similar services. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:

- Quality of services provided under the contract;
- Compliance with contract terms and conditions;
- Effectiveness of management;
- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
- Business integrity / business conduct. The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In

addition, the Contracting Officer may use past performance information in making a determination of responsibility.

- (5) Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;
- (6) The offeror shall comply with all applicable Latvian laws, regulations, and regulatory authority requirements for the provision of cellular communication services in Latvia. The service provider shall possess and maintain all necessary licenses, permits, and certifications, and shall provide evidence of compliance upon request by the Government. The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided;
- (7) The offeror's plan for mobile telephone services to include but not limited to:
 - (a) A work plan taking into account all work elements in Section 1, Performance Work Statement.
 - (b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;
 - (c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and
- (8) Offeror is required to provide Technical Capability Documentation:
 - (a) Offerors are strongly encouraged to submit technical documentation, such as coverage heat maps, base station count, 5G coverage information, certifications, or other supporting materials that clearly demonstrate their capability to satisfy or exceed each of the minimum technical requirements;
 - (b) Offerors are also encouraged to provide examples, demonstrations, or screenshots of their online account management platform functionality. Documentation should be specific, verifiable, and directly address the requirements as stated.
- (9) Evidence that the Contractor has a recovery plan in the event of an emergency or disaster.

Any other written information that will provide proof of the company's technical and financial responsibility.

A.4. NDAA Section 889 compliance information in accordance with Section 5.

**ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12**

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE
(FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at [Acquisition.gov](https://www.acquisition.gov) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](https://www.e-cfr.gov) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION PROVISIONS ARE
INCORPORATED BY REFERENCE:

<u>PROVISION</u>	<u>TITLE AND DATE</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV 2024)
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020)
52.211-1	AVAILABILITY OF SPECIFICATIONS LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS, FPMR PART 101-29 (SEP 2023)
52.212-1	INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)
52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State’s Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State’s Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source

Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, Management Officer, at the American Embassy Riga, Samnera Velsa Street 1. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

652.239-802 VENDOR LOCK-IN PROVISION (DEVIATION) (SEP 2025)

(a) Definitions. As used in this provision-

Vendor Lock-In-The term vendor lock-in refers to a situation in which the Government's ability to operate, maintain, or transition a system, data, software, or related capability is limited due to dependency on proprietary technologies, formats, or services controlled by a specific contractor. This includes restrictions on access to models, training data, source code, documentation, or technical interfaces that would prevent or burden the Government's ability to transition to alternative solutions or providers.

(b) Vendor Lock-In Mitigation. The Government requires that offers submitted in response to this solicitation that incorporate AI technologies include terms that reduce vendor lock-in risk, such as requirements regarding knowledge transfer, clear data and model portability practices, clear licensing terms, and pricing transparency. This applies to all prime contractors and subcontractors performing AI-related work under this contract and must be flowed down accordingly.

(End of Provision)

SECTION 4 - EVALUATION

The Government intends to establish a single indefinite quantity contract that includes a one-year base year plus four (4) 12-month options, resulting from this solicitation to the responsible contractor whose quotation conforms to the solicitation and represents the best value to the Government, price and other factors considered utilizing FAR 13 Comparative Evaluation.

This selection process will utilize FAR 13 procedures.

After preliminary consideration of all offers, the Department will no longer consider offers that do not meet basic standards to be eligible for award. The offers that remain will be subject to a comparative evaluation.

The preliminary evaluation process shall include the following:

COMPLIANCE REVIEW. The Government will perform an initial review of proposals/quotations received to determine completeness and compliance with the terms of the solicitation to **include:**

- **CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) Go/No-Go Evaluation Factor.** The Government may reject as unacceptable proposals/quotations that do not conform to the solicitation.

C-SCRM Go/No-Go Evaluation Factor

This factor is evaluated on a go/no-go basis. The Government will evaluate whether the submitted C-SCRM Questionnaire and State Department Secure Software Development Attestation Form meet the definition for the “Go” or “No-Go” ratings for this factor. The “Go” and “No-Go” ratings and their definitions are as follows:

RATING	RATING DEFINITION
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GO	The proposal <u>meets</u> the criteria in the following two (2) paragraphs.
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The C-SCRM Questionnaire contains both of the following: (1) C-SCRM Questionnaire instructions are completed; and (2) contains “Yes” answers for all questions in Sections 2 and 3 of the questionnaire; or the vendor has submitted a third party authorizing official conducted assessment such as, ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization.

NO-GO	The proposal <u>does not meet</u> one (1) or more of the criteria in the following two (2) paragraphs.
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The C-SCRM Questionnaire contains both of the following: (1) C-SCRM Questionnaire instructions are completed; and (2) contains Yes answers for all questions in Sections 2 and 3 of the questionnaire; or the vendor has submitted a third party authorizing official conducted assessment such as, ISO 27001, ISO 9000, SOC II, or FEDRAMP authorization.

- The Contractor must hold all permits and regulatory approvals required to operate in Latvia. This requirement is mandatory.

Comparative Evaluation

A comparative evaluation will be performed in accordance with FAR 13.106-2(b)(3). A comparative evaluation is defined as the act of comparing two or more offers in response to the RFQ. The item-by-item comparison is performed by comparing each offer to directly to one another to determine which provides the best value to the Department utilizing **technical, past performance criteria and price** as described below. **This is NOT a low price technically acceptable or trade-off process.**

Evaluation Criteria

Technical: Technical capability will be evaluated on the basis of a direct comparison to other offers to discern if there is any kind of technical quality superiority that would support an award to a higher priced offer. Technical discriminators by requirement may include:

Minimum Technical Requirements	non-price/quality discriminators
Network Coverage	5G service wherever available, 4G/LTE and legacy technologies in accordance with Paragraph 2.1
SIM and eSIM Support	SIM and eSIM for all lines in accordance with Paragraph 2.2
Voice and Data Services	Minimum 4G/LTE in accordance with Paragraph 2.3
WiFi Calling	WiFi calling functionality in accordance with Paragraph 2.4
International Roaming	Comprehensive roaming coverage within the United States and the European Economic Area (EEA) in accordance with Paragraph 2.5
Voicemail Service	Amount and duration of storage; Set-up in English in accordance with Paragraph 2.6
On-line Account Management Platform	Management of information in accordance with Paragraph 2.8
Customer Support	Live human reception after hours; direct line for preferred clients in accordance with Paragraph 2.10
Account Management	Point of Contact in accordance with Paragraph 2.9

Detailed Billing of Calls Made	Includes itemized billing per call, minutes, number and total duration; Captures historical usage in regular invoicing; Access online in accordance with Paragraph 2.7
Device Compatibility	Compatible with standard unlocked GSM/LTE/5G mobile devices in accordance with Paragraph 2.11
Number Portability	Number portability for all lines in accordance with Paragraph 2.12
Network Resilience and Emergency Preparedness	Appropriate measures for emergency preparedness and rapid service restoration in accordance with Paragraphs 2.13, 2.16, 2.17
Dedicated Mobile Internet Services	4G/LTE and 5G connectivity in accordance with Paragraph 2.14
Regulatory Requirements	Licenses, permits, and certifications in accordance with Section 3, Paragraph A.3(6)
NDAA Section 889 Compliance	No prohibited use of "any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system" per 52.204-24 & 52.204-26 in accordance with Paragraph 2.15

Past Performance: Past performance will be evaluated on the basis of a direct comparison to other offers to discern if there is any significant past performance superiority that would support an award to a higher priced offer. Past performance as a discriminator may be appropriate where, based on the offeror's performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

Price will be evaluated to ensure the proposed price is fair and reasonable. The price will be determined by multiplying the offered prices times the estimated quantities in "Prices - Continuation of SF-1449, block 23", and arriving at a grand total, including all options. The Government reserves the right to reject proposals that are unreasonably low or high in price.

RESPONSIBILITY DETERMINATION. The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:

- Adequate financial resources or the ability to obtain them;
- Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
- Satisfactory record of integrity and business ethics;
- Necessary organization, experience, and skills or the ability to obtain them;
- Necessary equipment and facilities or the ability to obtain them; and
- Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

**ADDENDUM TO EVALUATION
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12**

THE FOLLOWING FAR PROVISIONS ARE PROVIDED IN FULL TEXT:

52.217-5 EVALUATION OF OPTIONS (JUL 1990)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION
(OCT 2020)

(a) *Definitions.* As used in this provision, “covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(c) *Representations.* (1) The Offeror represents that it [] does, [] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the Offeror represents that it [] does, [] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATION

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror’s possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror’s possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran’s ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)